

Mutual Non-Disclosure Agreement

TechNova Solutions Pvt. Ltd. × Vertex Analytics LLP

Effective: 15.11.2024 | Ref: TN-VA-NDA-2024-0892 | Term: 3 years

This Mutual Non-Disclosure Agreement ("Agreement") is made and entered into on this 15th day of November, 2024 ("Effective Date") by and between:

TechNova Solutions Private Limited, a company incorporated under the Companies Act, 2013, having CIN U72200KA2019PTC128847, with its registered office at Prestige Tech Park, Marathahalli, Bengaluru, Karnataka 560103 ("Disclosing Party");

— AND —

Vertex Analytics LLP, a limited liability partnership registered under the Limited Liability Partnership Act, 2008, having LLIN AAB-1234, with its principal place of business at Cyber Hub, DLF Phase III, Gurugram, Haryana 122002 ("Receiving Party").

WHEREAS, the Parties desire to explore a potential business relationship ("Purpose") and may disclose certain confidential and proprietary information to each other in connection therewith. NOW, THEREFORE, in consideration of the mutual covenants herein, the Parties agree as follows:

§ 1 Definitions

Status: Safe

Confidential Information means any non-public information disclosed by one Party to the other, whether oral, written, electronic, or otherwise, including trade secrets, business plans, customer data, technical specifications, source code, financial information, and marketing strategies, regardless of whether marked confidential.

Note: Standard definition scope. Carve-outs for independently developed information and compelled disclosures properly included.

§ 2 Confidentiality Obligations

Status: Safe

2.1 The Receiving Party shall hold all Confidential Information in strict confidence and shall not disclose such information to any third party without prior written consent of the Disclosing Party, except to employees and advisors on a need-to-know basis.

2.2 The Receiving Party shall use the Confidential Information solely for the Purpose and exercise at least the same degree of care as it uses for its own confidential information, but no less than reasonable care.

§ 2.3 Non-Compete Restriction

Status: Void (ICA §27)

The Receiving Party covenants that, for five (5) years from the Effective Date or termination, it shall not directly or indirectly engage in any competing business anywhere in India.

Issue: Indian Contract Act, 1872 §27 renders restraints of trade void except sale of goodwill. *Niranjan Shankar Golikari v. Century Spinning (1967)* permits only reasonable restrictions during employment.

§ 3 Term and Termination

Status: Safe

Agreement remains in force for three (3) years. Either Party may terminate upon thirty (30) days' written notice. Confidentiality obligations survive for three (3) years after termination.

§ 4.1 Payment Terms

Status: Review (MSME)

Invoices payable within ninety (90) days. Disputed amounts payable within fifteen (15) days after resolution.

Issue: MSME Development Act, 2006 §15 requires payment within 45 days; delay attracts interest under §§16–17.

§ 5 Intellectual Property

Status: Safe

All Confidential Information remains the sole property of the Disclosing Party. No IP rights are transferred. Misuse must be promptly reported.

§ 6 Indemnification

Status: Review

Each Party shall indemnify the other for all claims, damages, liabilities, costs, and expenses arising from breach without monetary limitation.

Issue: Uncapped indemnity exposure. Consider capping liability and excluding indirect losses.

§ 7 Dispute Resolution

Status: Unenforceable

Exclusive jurisdiction of Singapore courts.

Issue: Potentially unenforceable where parties lack connection to Singapore. Suggested jurisdiction: Bengaluru courts.

§ 8 Governing Law

Status: Safe

Governed by the laws of the Republic of India.

§ 9 Limitation of Liability

Status: Review

No liability for indirect or consequential damages. Aggregate liability capped at amounts paid in the preceding twelve (12) months.

Note: Standard market cap; verify adequacy for engagement value.

— In Witness Whereof —

For TechNova Solutions Pvt. Ltd.

Name: Rajesh Mehta

Title: Chief Legal Officer

Date: _____

Authorized Signatory

For Vertex Analytics LLP

Name: Priya Sharma

Title: Designated Partner

Date: _____

Authorized Signatory